

used by the States to avoid opening to Negroes public facilities enjoyed by whites. *Green v. School Board of New Kent County*, 391 U. S. 430; *Raney v. Board of Education*, 391 U. S. 443; *Monroe v. Board of Commissioners*, 391 U. S. 450. There is a like process at work at the federal level in respect to aid to religion. The efforts made to insert in the law an express provision which would allow federal aid to sectarian schools to be reviewable in the courts was defeated.⁸ The mounting federal aid to sectarian schools is notorious and the subterfuges numerous.⁹

⁸ These efforts, commencing in 1961, are discussed in S. Rep. No. 85, 90th Cong., 1st Sess., 2-3 (1967), and S. Rep. No. 473, 90th Cong., 1st Sess., 10-15 (1967). The Senate added such a provision to the Higher Education Facilities Act of 1963, but it did not survive conference. S. Rep. No. 85, at 2. A bill, S. 3, to make certain "establishment" questions reviewable has been reported by the Senate in the Ninetieth Congress.

⁹ "Tuition grants to parents of students in church schools is considered by the clerics and their helpers to have possibilities. The idea here is that the parent receives the money, carries it down to the school, and gives it to the priest. Since the money pauses a moment with the parent before going to the priest, it is argued that this evades the constitutional prohibition against government money for religion! This is a diaphanous trick which seeks to do indirectly what may not be done directly.

"Another one is the 'authority.' The state may not grant aid directly to church schools. But how about setting up an authority—like the Turnpike Authority? The state could give the money to the authority which, under one pretext or another, could channel it into the church schools.

"Yet another favorite of those who covet sectarian subsidies is 'child benefit.' Government may not aid church schools, but it may aid the children in the schools. The trouble with this argument is that it proves too much. Anything that is done for a school would presumably be of some benefit to the children in it. Government could even build church school classrooms, under this theory, because it would benefit the children to have nice rooms to study in." 21 Church & State (June 1968), p. 5 (editorial).